

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 16, Honorable Roberta S. Hayashi, Presiding

Courtroom Clerk:

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LAW AND MOTION TENTATIVE RULINGS

To contest the ruling, call (408) 808-6856 before 4:00 P.M.

DATE: WEDNESDAY, MARCH 12, 2025 (supp. 3/11/2025 at 3 p.m. with re Line #9)

TIME: 9:00 A.M.

Please Read Carefully As Some of Our Protocols Have Changed.

All Courts of California celebrate the diversity of the attorneys and the litigants who appear in our Courts. Do not hesitate to correct the Court or Court Staff concerning the pronunciation of any name or how anyone prefers to be addressed, or referred to. All persons should spell their names for the benefit of Court Staff.

Appearances.

Personal appearances in the courtroom are strongly encouraged. If you must appear remotely, you must use the MS Teams link from a device with a camera. Please "name" yourself when you log in, as: **Line #/name/party**. Remote appearances should be made from a quiet location with no background noise (and not from a moving vehicle). IT IS ABSOLUTELY NECESSARY FOR ALL INDIVIDUALS TO SPEAK SLOWLY, AND NOT TO INTERRUPT WHEN SOMEONE ELSE IS SPEAKING.

Please notify this Court immediately if the matter will not be heard on the scheduled date. **California Rules of Court**, rule 3.1304(b). If a party fails to appear at a law and motion hearing without having given notice, this Court may take the matter off calendar, to be reset only upon motion, or may rule on the matter. **California Rules of Court**, rule 3.1304(d).

This Court expects all counsel and litigants to comply with the Tentative Rulings Procedures that are outlined in Local Civil Rule 7(E) and **California Rules of Court**, rule 3.1308. If the Court has not directed argument, oral argument must be permitted only if a party notifies all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear. A party must notify all other parties by telephone or in person. A failure to timely notify this Court and/or the opposing parties may result in the tentative ruling being the final order in the matter.

A party may give notice that he or she will not appear at a law and motion hearing and submit the matter without an appearance unless this Court orders otherwise. This Court will rule on the motion as if the party had appeared. **California Rules of Court**, rule 3.1304(c).

Court Reporters.

This Court does not appoint Court Reporters in civil actions except in limited circumstances. If you wish to arrange for a private court reporter, please use Local Form #CV-5100.

No electronic recordings, video, still photography or audio capture of this live stream is allowed without the expressed, written permission of the Superior Court of California, County of Santa Clara. Use of the Court's Electronic Recording (ER) system is limited to proceedings permitted by statute or General Order of the Court. State and Local Court rules prohibit photographing or recording of court proceedings whether in the courtroom or while listening on the Public Access Line or other virtual platform, without a Court Order. See Local General Rule 2(A) and 2(B); **California Rules of Court**, rule 1.150.

Orders After Hearing

The Court will prepare the Final Order unless stated otherwise below or at the hearing. Counsel are to comply with **California Rules of Court**, rule 3.1312.

TROUBLESHOOTING TENTATIVE RULINGS

If you see last week's tentative rulings, you have checked prior to the posting of the current week's tentative rulings. You will need to either "REFRESH" or "QUIT" your browser and reopen it. If you fail to do either of these, your browser may pull up old information from old cookies even after the tentative rulings have been posted.

Tentative Rulings Are Continued Below. Full Orders Are On The Following Pages If the "link" in the left column does not work, please scroll down through the document.

LINE #	CASE #	CASE TITLE	RULING
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LINE #	CASE #	CASE TITLE	RULING
LINE 1	24CV441515	Michael Babayan vs John Atala et al	Defendant's Demurrer (filed 12/2/2024) to Plaintiff's First Amended Complaint is SUSTAINED with 20 days leave to amend. See Tentative Ruling below for further details. Court to prepare order.
LINE 2	24CV451814	YI WEI vs TINA HSU	Defendant's Special Motion to Strike (filed 12/31/2024) Plaintiff's Complaint Pursuant to CCP §425.16 (Anti-SLAPP) is GRANTED. See Tentative Ruling below for further details. Court to prepare order.
LINE 3	20CV373069	Paul Battaglia vs Nilufer Koechlin (Action Filed: 11/4/2020) (Trial Date: 8/11/2025)	Plaintiff's Request to Dismiss (filed 1/3/2025) his Second Cause of Action from his First Amended Complaint and to Strike therefrom all allegations relating to claims for support is GRANTED WITH PREJUDICE. Plaintiff as a matter of right may dismiss a cause of action prior to trial. A motion to strike matter from a pleading requires order of the Court following motion, or on stipulation of the Parties. The Court will grant Plaintiff's Request on the condition that the dismissal and motion to strike are WITH PREJUDICE and that Plaintiff may not seek to introduce into evidence at trial any argument or evidence of any agreement or obligation by Defendant to provide him with post-separation support of his lifestyle or living. This is a matter that counsel should have been able to reach agreement to by stipulation and order. Consolidated Order on Lines 3, 4 and 5 to be prepared by the Court.

LINE #	CASE #	CASE TITLE	RULING
LINE 4	20CV373069	Paul Battaglia vs Nilufer Koechlin (Action Filed: 11/4/2020) (Trial Date: 8/11/2025)	Defendant/Cross-Complainant's Motion to Compel the Deposition of third-party witness Christina Wei (filed 1/22/2025) is DENIED. In view of the Court's order in Line #3 above, any testimony that Ms. Wei might have provided is now not likely to result in admissible evidence or lead to the discovery of admissible evidence that could not have been obtained through other more reliable, and less burdensome or harassing means (e.g. through Plaintiff's responses to Special Interrogatories 36 and 37, and the production of documents by third-party banks and credit card companies). Additionally, the Court does not find that there was a reason that this Motion had to be heard on March 12, 2025. It would have been less costly and onerous to hear first Plaintiff's Request to Dismiss/Motion to Strike (which was filed before this Motion to Compel), or better yet stipulate thereto and to hear Defendant's motion to compel further answers to interrogatories 36, 37 and 60 (line #5) and then engage in a meaningful meet and confer with regard to the scheduling and parameters of the deposition of this third party witness, based on the Court's rulings in those matters. For all of those reasons, the Court orders that sanctions in an amount equal to 4 hours of Mr. Parkhurst's time at his regularly hourly rate (to be provided to the Court be declaration, or by reference to the date of filing, page and line # of a previously filed declaration) shall be paid by Defendant moving party as a sanction by moving party to the client trust account of Ms. Wei's counsel, within 30 days of entry of order, as the reasonable attorneys' fees found by the Court to have been incurred in preparing and filing written opposition to the motion to compel. Consolidated Order on Lines 3, 4 and 5 to be prepared by the Court.

LINE #	CASE #	CASE TITLE	RULING
LINE 5	20CV373069	Paul Battaglia vs Nilufer Koechlin (Action Filed: 11/4/2020) (Trial Date: 8/11/2025)	Defendant/Cross-Complainant's Motion to Compel Further Responses to Interrogatories 36, 37 and 60 (filed 1/22/2025) is GRANTED with regard to Interrogatories 36 and 37, and DENIED with regard to Interrogatory No. 60. In view of the dismissal of his Second Cause of Action, Plaintiff contends that no further response should be compelled to these interrogatories. Although the information that may be gained would be admissible evidence or lead to the discovery of admissible evidence on a claim for support, it appears to the Court that Plaintiff may contend that his foreseeable damages for breach of contract with regard to owning fully improved and furnished real estate should be measured by what he has had to spend "out of pocket" to obtain comparable housing. Accordingly, the Court finds that Interrogatories 36 and 37 seek discoverable information to the extent that they are limited to information relating to expenditures for replacement food, shelter, and furnishings post-separation. The responses should include not only the dollar amounts (provided) but to whom, when and for what those amounts are paid. Any concerns that Plaintiff may have regarding his privacy in that information may be addressed by way of the protective order previously ordered. The Court finds that Interrogatory No. 60 is unduly burdensome, harassing and invasive, and that in view of the Court's order in Line #3 above, not likely to lead to the discovery of admissible evidence that could not be obtained from more reliable and less invasive means. The Court notes that Plaintiff's discovery responses Request for Sanctions in connection with this Motion is denied. Consolidated Order on Lines 3, 4 and 5 to be prepared by the Court.

LINE #	CASE #	CASE TITLE	RULING
LINE 6	22CV394304	SOPHIA SERNA et al vs CARLOS CALLES	Defendant's Motion for Terminating Sanctions was filed October 3, 2024 pursuant to CCP §2023.030(d) for Plaintiffs failure to comply with the Court's Order filed June 11, 2024 to provide responses to discovery. No opposition was filed. The Motion is GRANTED. Plaintiffs commenced this action on February 14, 2022. On February 6, 2023 and against on April 28, 2023, Plaintiffs failed to appear for their depositions. As of April 28, 2023, Plaintiffs had also failed to respond to the written discovery served on them by Defendant. On January 18, 2024, the Court ordered that Plaintiffs serve full, complete and verified Responses to Discovery (see Ordered filed June 11, 2024). As of the date of this hearing, Plaintiffs have yet to comply with the Court's order made over one year ago. Accordingly the Court finds there is a misuse of the discovery process within the meaning of CCP§ 2023.010 (g) and orders that Plaintiffs' complaint be stricken. Moving Party to prepare order.
LINE 7	23CV414590	Kristin Tsai et al vs Alice Chang et al	Hearing on Discovery Motion Continued to 4/11/2025, in view of court-ordered IDC set for 3/26/2025.

LINE #	CASE #	CASE TITLE	RULING
LINE 8	24CV440942	Jesus Escajeda vs General Motors, LLC, a Delaware Limited Liability Company <i>et al</i>	This is the first hearing on seven Motions to Compel discovery responses that Plaintiff has filed. The other hearings are set for 3/14 (3), 4/18, 4/23 and 6/6. Plaintiff's motion to compel verified, code compliant responses from Defendant Capitol Buick GMC is GRANTED. After Plaintiff's counsel sent a letter to Defendant noting that there had not been any response to written discovery requested previously served, Defendant responded on October 30, 2024 by providing unverified responses, referring to documents and providing few substantive responses. Plaintiff's attorney again wrote and pointed out that the responses were not verified before filing the current Motion to Compel. Plaintiff contends that he had no obligation to meet and confer re the deficiencies in the responses, as an unverified response is not code compliant. However, objections need not be verified. Accordingly, the Court does not find that objections are waived, and Defendant has 20 days to produce verified responses to the form interrogatories. The Court notes that Defendant could have resolved this motion without burdening the Court by serving verified responses any time in the last four months before requiring the filing of an opposition or reply. Plaintiff is not seeking sanctions, so none are ordered. On its own motion, the Court orders that the hearings currently set for March 14, and April 18 and April 23, are all continued and reset to June 6, 2025. Parties are ordered to meet and confer as to which if any of the pending motions can be resolved by Defendant's service of verified responses, and Plaintiff's review of the documents that Defendants have or will produce in the next 30 days. An IDC will be set in D16 for the week of May 5, 2025. Counsel are ordered to appear for the scheduling of the IDC and further orders with regard thereto.

LINE #	CASE #	CASE TITLE	RULING
LINE 9	22CV405531	Duy Nguyen vs Fred Meeske et al	Plaintiff's Request to "reset" for hearing nine Motions to Compel previously filed by him on December 22, December 27, December 28 and December 29, 2023 and January 2, 2024 is GRANTED in part with regard to Plaintiff's Motion to Compel further responses to his Second Demand for Production of Documents by Defendant Rosendin and with regard to Plaintiff's Motion to Compel further responses to Special Interrogatories, Set No. 1 – to the limited extent that efforts to resolve specific categories of those discovery requests had been referred to the Discovery Facilitator Program, and were subsequently re-referred to the Court for determination. As Supplemental Responses were served by Defendants to the other seven discovery requests in March or May 2024 (after the filing of the other motions to compel), and Plaintiff did not file a motion to compel further response within 45 days thereafter or obtain a stipulation to extend the time for filing such motions, the Court does not have jurisdiction to consider motions to compel further responses based on the supplemental responses. The Court will not modify, or set aside the order of September 17, 2024 with regard thereto. See Tentative Ruling below for further details. The Court will prepare the order.
LINE 10	24CV434088	Curtis Lau vs Aida Yezalaleul et al	The motion of the City of Mountain View (the "City") (filed 9/13/2025) to intervene in this action pursuant to Labor Code §3853 is GRANTED. City alleges that it was Plaintiff's employer at the time of the incident giving rise to this lawsuit. No opposition was filed. Moving Party to prepare Order. Pursuant to the Notice of Settlement filed March 7, 2025, the Case Management Conference set for 3/12/2025 at 10 a.m. has been vacated, and the matter set for Settlement Status Conference/OSC re: Dismissals following settlement on 7/25/25 in Dept. 16.

LINE #	CASE #	CASE TITLE	RULING
LINE 11	23CV413846	Yakelin Gonzalez et al vs Yellow Checker Cab of San Jose et al	Petition to approve Minor's Compromise for Plaintiff Sahily F. (age 14) filed 11/6/2024, brought by her mother Plaintiff Gonzales. Having reviewed the petition and the documents on file in support thereof, and no opposition having been filed with regard thereto, the Court finds good cause to approve the settlement; the payment of medical expenses, attorneys' fees and costs therefrom; and to order the balance of settlement funds to be deposited in the blocked account, all as set forth in the proposed orders submitted by Petitioner. The Court finds good cause to excuse the appearance and testimony in Court of the Parent or Guardian ad Litem of the Minor.
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Calendar Line 1

Calendar Line 1

Case Name: *Babayan v. Atala, et al.*

Case No.: 24CV441515

This is an action for fraud which was filed on June 20, 2024. On December 2, 2024, following correspondence between counsel about the sufficiency of the pleadings, Defendant John Atala (“Atala”) filed his demurrer to the First Amended Complaint (“FAC”). As alleged in the FAC, on July 18, 2018, during a difficult time, plaintiff Michael Babayan (“Plaintiff”) called defendant Atala who “seized the opportunity” to offer Plaintiff an opportunity to invest in a business related to concerts of well known celebrity artists which would generate a guaranteed return. (See FAC, ¶¶ 11-12.) Plaintiff then entered into an oral agreement with Atala by which Plaintiff would invest \$400,000 with a guaranteed return of \$650,000 “within several months.” (See FAC, ¶ 12.) On July 31, 2018, Plaintiff wired \$400,000 to defendant Carlos Goodspeed (“Goodspeed”) pursuant to the agreement and Atala’s instructions. (See FAC, ¶ 13.) After approximately six months, Plaintiff noticed a pattern of delays and excuses from communications received from Atala, Goodspeed and Brian Creem (“Creem”) as to why he had not yet received his investment and guaranteed return back. (See FAC, ¶ 14.) In mid-2019, Atala introduced Plaintiff to defendant Daemon Saint (“Saint”), who indicated that he was associated with and worked for Goodspeed. (*Id.*) From 2019 through 2022, Defendants began representing that he would be paid in accordance with the agreement; however, since his initial investment, Plaintiff has not been paid in accordance with the agreement receiving only small amounts needed for emergencies from Atala. (See FAC, ¶ 15.) Since 2019, Plaintiff has requested that Defendants perform in accordance with the agreement. (See FAC, ¶ 17.)

On June 20, 2024, Plaintiff filed the complaint against defendants Atala, Goodspeed, Creem and Saint (collectively, “Defendants”), asserting causes of action for:

- 1) Fraud and deceit by intentional misrepresentation (against all defendants);
- 2) Fraud and deceit by negligent misrepresentation (against all defendants);
- 3) Fraud and deceit by suppression of facts (against all defendants);
- 4) Constructive fraud (against all defendants);
- 5) Fraud and deceit based on conspiracy (against all defendants);
- 6) Unjust enrichment (against all defendants);
- 7) Money had and received (indebitus assumpsit) (against all defendants);
- 8) Conversion (against all defendants); and,
- 9) Unfair business practices (against all defendants).

Defendant Atala demurs to each of the causes of action, arguing that each of the causes of action are time-barred, and the first five causes of action are not pled with sufficient particularity. For the reasons set forth below, the Court sustains the demurrer.

Each of the causes of action fail to allege facts demonstrating that they were timely brought.

Defendants argue that each of the causes of action are untimely. “Where a demurrer raises the bar of the applicable statute of limitations, the court assesses whether ‘the complaint shows on

its face that the statute bars the action.” (*Czajkowski v. Haskell & White, LLP* (2012) 208 Cal.App.4th 166, 174.) “Such a defect ‘must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows merely that the action may be barred.’” (*Id.*) “A plaintiff must bring a claim within the limitations period after accrual of the cause of action.” (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 806.) “Generally speaking, a cause of action accrues at ‘the time when the cause of action is complete with all of its elements.’” (*Id.*) “An important exception to the general rule of accrual is the ‘discovery rule,’ which postpones accrual of a cause of action until the plaintiff discovers, or has reason to discover, the cause of action.” (*Id.* at p.807.) “A plaintiff has reason to discover a cause of action when he or she ‘has reason at least to suspect a factual basis for its elements.’” (*Id.*) “[A] plaintiff invoking ‘the discovery rule must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence. The burden is on the plaintiff to show diligence, and conclusory allegations will not withstand demurrer.” (*E-Fab, Inc. v. Accountants, Inc. Services* (2007) 153 Cal.App.4th 1308, 1324 (Sixth District opinion).)

Pursuant to CCP §338(d), the applicable statute of limitations for the First through Fifth causes of action which are based upon fraud is three years from the date of discovery. Here, the FAC alleges that Plaintiff was to receive his investment and return “within several months.” (See FAC, ¶ 13.) Plaintiff noted that he was not receiving his return on the investment in a timely manner because six months from his July 31, 2018 wiring of the monies, Plaintiff noticed a pattern of delays and excuses from Defendants as to why he had not yet received his investment and guaranteed return back. Thus, by January 31 2019, Plaintiff had a reason to suspect a factual basis for the fraud cause of action. While the FAC alleges that Defendants represented that Plaintiff would be paid in accordance with the agreement from 2019 through 2022 (see FAC, ¶ 15), the FAC alleges that the agreement provided that he would have already been paid as there were delays and excuses from Defendants as to why Plaintiff had not yet received his investment and guaranteed return back. (See FAC, ¶ 14.) While Plaintiff contends in his opposition that he did not discover the fraud until 2022, the FAC neither alleges the time and manner of the purported discovery of the factual basis for the causes of action, nor the inability to have made earlier discovery despite reasonable diligence.

Further, the FAC fails to set forth facts of any statements or conduct by Defendant Atala that occurred within three years prior to the commencement of this action, i.e. before June 20, 2024. Paragraph 15, 16 and 19 refer in generalized terms to conduct of “Defendants”.

Plaintiff’s remaining causes of action also appear to be time-barred from the face of the FAC. Plaintiff’s Sixth (Unjust Enrichment), Eighth (Conversion) and Ninth Causes of Action (Unlawful Business Practices) are also subject to the three-year statute of limitations provided by CCP §338(c) and (d). Plaintiff alleges that he transferred \$400,000 to Defendant Goodspeed on July 31, 2018 (FAC ¶13) and that he has been seeking return of those funds since 2019 (FAC ¶17). Plaintiff’s Seventh Cause of Action (Money Had and Received) is based on an alleged oral agreement. CCP §339 provides that this cause of action is governed by a two-year statute of limitations.

On this ground, Defendant’s demurrer to each of the causes of action the complaint is SUSTAINED with 20 days leave to amend.

Defendant’s demurrer to the first through fifth causes of action is sustained on the further ground that they do not allege facts showing tortious conduct that exposes the plaintiff to a risk of harm beyond the reasonable contemplation of the parties when they entered into the contract.

As Defendant argues, the California Supreme Court recently stated that “[a] plaintiff may assert a fraudulent concealment cause of action based on conduct occurring in the course of a contractual relationship if the elements of the claim can be established independently of the parties’ contractual rights and obligations, and the tortious conduct exposes the plaintiff to a risk of harm beyond the reasonable contemplation of the parties when they entered into the contract.” (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 13, 37-38 (also stating that “to be held liable in tort, a defendant must commit a tort... [i]f all the defendant has allegedly done is violate the terms of the parties’ contract, depriving the plaintiff of the benefits the contract ensures, the defendant’s liability is limited by the contract... [b]roader tort liability only arises if a defendant violates an independent legal duty and the type of harm that ensues was not reasonably contemplated or accounted for by the contractual parties”).)

Here, the purported fraud of the FAC is that Atala made representations regarding a rate of return, which caused Plaintiff to enter into an oral agreement with the expectation of receiving that return, and that Defendants sent certain emails regarding “the alleged investment of Plaintiff’s funds” (FAC, ¶ 16), and that from 2019 through 2022, Defendants represented that Plaintiff “would be paid in accordance with the Agreement.” (FAC, ¶ 15.) These facts do not indicate the violation of an independent legal duty or the type of harm that was not reasonably contemplated or accounted for by the parties at the time of the agreement.

Therefore, on this additional basis, Defendant’s demurrer to the first through fifth causes of action the complaint is SUSTAINED with 20 days leave to amend.

The Court will prepare the Order.

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Calendar Line 2

24CV451814 Wei v. Hsu

The Special Motion to Strike pursuant to Code of Civil Procedure section 425.16 is GRANTED.

Factual and Procedural Background.

Plaintiff Yi Wei (“Plaintiff”) is an individual residing in Qingdao City, Shandong Province, in the People’s Republic of China. (Complaint at ¶ 1.) Defendant Tina Tipping Hsu (“Defendant”) is an individual residing in the County of Santa Clara, in the State of California. (*Id.* at ¶ 2.) Plaintiff alleges that she is the surviving spouse of the deceased, Zhiyong Yin (“Yin” or “Decedent”) and that Defendant is his ex-wife. (*Id.* at ¶ 3.)

Defendant and Yin were married in China on or around December 31, 2003. (Complaint at ¶ 9.) Defendant and Yin thereafter resided in the United States. (*Id.* at ¶¶ 10-

12.) Yin obtained permanent residence in the United States on July 18, 2006. (*Id.* at ¶ 12.) At issue is the property purchased during Yin and Defendant’s marriage located at 18831 Tilson Avenue, Cupertino, CA 95014 (the “Property”). (*Id.* at ¶ 27.) Plaintiff alleges that the funds used to purchase the Property were from Yin and that Defendant was permitted to live there rent-free and maintain the Property on his behalf after they were separated in 2009. (*Id.* at ¶¶ 28-32.)

Plaintiff met Decedent in 2009 and they began cohabitating in China that same year. (Complaint at ¶ 13.) Although Plaintiff proposed marriage, Decedent disclosed that he was still married but did not live with Defendant in California. (*Ibid.*) Yin promised to register the divorce when Defendant came to China. (*Ibid.*)

Defendant visited China in May 2016 and registered her divorce with Yin. (Complaint at ¶ 22.) Plaintiff alleges she and Defendant met during this time, and that Defendant had also met her daughter with Yin. (*Id.* at ¶¶ 23-24.) Plaintiff alleges that she has not met Defendant since this visit, but that they have kept in touch via WeChat. (*Id.* at ¶ 26.) Plaintiff and Yin later married on June 15, 2016, in Qingdao, China. (*Id.* at ¶ 25.) However, Defendant and Yin continued to hold the Property as joint tenants with right of survivorship even though they had divorced in China. (Declaration of Tina Tiping Hsu [“Hsu Decl.”] at ¶ 6.)

Yin was diagnosed with liver cancer in February 2019. (Complaint at ¶ 36.) Plaintiff alleges Yin had contacted Defendant several times to sell the Property. (*Id.* at ¶¶ 34, 39, 40, 41.) Yin passed away on December 19, 2019. (*Id.* at ¶ 52.) Plaintiff alleges that she sent Defendant a photograph of the original medical death certificate via WeChat on January 21, 2020 and subsequently mailed it to her the following day. (*Id.* at ¶¶ 57, 59.) Likewise, Plaintiff applied for and sent Defendant a Household De-registration Certificate via WeChat on February 22, 2020. (*Id.* at ¶¶ 62, 63.) Plaintiff alleges that she attempted to visit California for the sale of the Property but that the sale had been postponed due to the COVID-19 pandemic. (*Id.* at ¶¶ 64-67.)

On October 18, 2022, Defendant filed a verified Petition for Order Confirming Estate Assets pursuant to Probate Code section 850 in the Superior Court of California, County of Santa Clara (“850 Petition”). (Complaint at ¶ 70.) Plaintiff alleges Defendant committed perjury with respect to various parts of the 850 Petition including that she made reasonable efforts to locate any heirs of the Decedent but was unsuccessful and that to her knowledge Decedent was not married and did not have any children. (See, e.g., *id.* at ¶¶ 71-74.) On February 24, 2023, this Court issued an order granting the petition and ordering that Defendant and Yin were the joint owners of property with 100% of the Property belonging to Defendant upon Yin’s death. (*Id.* at ¶ 87.)

Plaintiff alleges that the Property was sold in March 2023 and that Defendant used the proceeds from the sale of the Property to purchase real estate at 340 Crestview Drive, Santa Clara, CA 95050. (Complaint at ¶ 88.) Plaintiff further alleges Defendant transferred the Property to “Angela and Connie living trust.” (*Id.* at ¶ 90.)

Plaintiff filed suit on November 15, 2024 alleging six causes of action for: (1) violation of Penal Code section 118; (2) set aside order for extrinsic fraud and perjury; (3) violation of Family Code section 2602; (4) breach of fiduciary duty; (5) fraud; and (6) constructive trust. Defendant filed her Special Motion to Strike pursuant to Code of Civil Procedure section

425.16 (“Anti-SLAPP Motion”) on December 31, 2024. Plaintiff filed her Opposition on February 24, 2025. Defendant filed her Reply on March 5, 2025.

Preliminary Matters.

First, the Court considers the timeliness of the instant Anti-SLAPP Motion. Section 425.16, subdivision (f) provides that an anti-SLAPP motion to strike “may be filed within 60 days of service of the complaint, or in the court’s discretion, at any later time upon terms it deems proper.” Here, the Complaint was served on November 27, 2024 with the Proof of Service filed on December 3, 2024. As stated above, the instant Motion was filed on December 31, 2024, or within 60 days of service of the Complaint. Accordingly, Defendant’s Motion is timely.

Second, Plaintiff seeks judicial notice of the 850 Petition pursuant to Evidence Code sections 452 and 453, attached to her Request for Judicial Notice. (Plaintiff’s Request for Judicial Notice [“RJN”] at p. 2:4-6, Ex. 1.) Likewise, Defendant requests judicial notice of the following documents pursuant to Evidence Code sections 452 and 453:

(1) Verified Petition for Order Confirming Assets (850 Petition) filed in Santa Clara County Superior Court, Case No. 22PR193501 attached as Exhibit 1 to the Declaration of Marisella T. Prada [“Prada Declaration”];

(2) Recorded Grant Deed, Doc. No. 1903807 filed in Santa Clara County Record’s Office for 18831 Tilson Avenue, Cupertino, CA 95014 attached as Exhibit 2 to the Prada Declaration;

(3) Order Approving Petition to Confirm Estate Assets (850 Petition) filed in Santa Clara County Superior Court, Case No. 22PR19350 attached as Exhibit 3 to the Prada Declaration;

(4) Recording of Certified Order Approving Petition to Confirm Assets, Document No. 25444485 filed in Santa Clara County Recorder’s Office attached as Exhibit 4 to the Prada Declaration; and

(5) Recording of Grant Deed, Document No. 25444485 in Santa Clara County Recorder’s Office attached as Exhibit 5 to the Prada Declaration.

(Defendant’s Request for Judicial Notice at p. 2:3-19, Exs. 1-5.)

Evidence Code section 452, subdivision (d) states that the court may take judicial notice of “[r]ecords of any court of this state.” This section of the statute has been interpreted to mean that the trial court may take judicial notice of the existence of the court’s own records. (See *People v. Woodell* (1998) 17 Cal.4th 448, 455 [noting that Evidence Code section 452 and 453 permit the trial court to take judicial notice of order, statements, and judgments]; see also *People v. Moore* (1997) 59 Cal.App.4th 168, 178 [noting that while a court can take judicial notice of a ruling, it cannot take notice of the truth of a factual finding made in another action].)

Accordingly, the Court GRANTS Plaintiff’s Request for Judicial Notice of the 850 Petition attached as Exhibit 1. Similarly, the Court GRANTS Defendant’s Request for Judicial

Notice of Exhibits 1, 3, and 4: the 850 Petition and the subsequent Order and recording of the Order granting the 850 Petition.

Recorded deeds are also the proper subject judicial notice. (See *Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 549 [“The court may take judicial notice of recorded deeds.”].) Therefore, the Court also GRANTS Defendant’s Request for Judicial Notice with respect to the grant deeds attached as Exhibits 2 and 5.

Plaintiff’s Objection Numbers 3 and 4 are OVERRULED and Defendant’s Objection Numbers 12, 14-17, 19, 20, 22, 25-26, 28, and 31-32 are SUSTAINED while Objection Numbers 18, 21, and 23 are OVERRULED.

As an initial matter, the Court notes that Plaintiff’s Objection Numbers 1 and 2, and Defendant’s Objection Numbers 1-11, 13, 24, 27, 29, and 30 are not material in resolving the motion. Accordingly, the Court declines to rule on those objections. The Court also does not consider Plaintiff’s objections to Defendant’s declaration submitted on Reply, as that declaration was not considered in resolving the motion. Additionally, Defendant’s Objection Numbers 18, 21, and 23 are OVERRULED since these objections reference Plaintiff’s Exhibits 4 and 6, or Yin’s death certificate and Household De-Registration Certificate that were submitted with Defendant’s underlying 850 Petition, which the Court has already judicially noticed.

Plaintiff’s Objection Number 3 is to paragraph 12 on page 3, lines 6-7 of the Hsu Declaration: “I had no reason to believe Yin was married at the time of his death, as his household registration certificate obtained and filed with the Petition states at the time of death, Yin was single.” (Hsu Decl. at ¶ 12.) Plaintiff objects on the grounds that Defendant states an opinion on an ultimate issue, the opinion is based on improper matter, the opinion is not rationally based on perception, and Defendant states ultimate facts and conclusions. Paragraph 12, lines 6-7 particularly address Defendant’s knowledge or belief of Yin’s marital status at the time of his death. Defendant may provide an opinion on an ultimate issue to be decided by a trier of fact pursuant to Evidence Code section 805. Regardless of whether Yin’s marital status translates to “never married” or “single”, his status based on either of these translations and as reflected on his death certificate indicates that he was not married at the time of death. This statement supports that Defendant would not have known Yin had been married from his death certificate or Household De-registration certificate alone and speaks to her personal knowledge at the time. The Court does not find these bases to be a proper ground for objecting to paragraph 12 lines 6-7, and therefore, OVERRULES Plaintiff’s Objection Number 3.

Plaintiff’s Objection Number 4 is to paragraph 12 on page 3, lines 8-9 of the Hsu Declaration: “It was only when I was served with the Complaint in the instant action did I learn of Plaintiff’s alleged marriage and child with Defendant’s ex-husband in China.” (Hsu Decl. at ¶ 12.) Plaintiff objects on the grounds that Defendant states ultimate facts and conclusions pursuant to Evidence Code 805. As stated above, Plaintiff may not object to opinions stated with respect to ultimate issues that are to be decided by a trier fact. Since this is not a proper ground for objecting to paragraph 12 lines 8-9, the Court, therefore, OVERRULES Plaintiff’s Objection Number 4.

Defendant’s Objection Numbers 12 and 14 are SUSTAINED in so far as they relate to Exhibit 3 or the alleged photograph of Plaintiff and Defendant meeting in 2016. The

photograph and description of their meeting is hearsay, lacks foundation, is not authenticated, and is irrelevant because it does not establish that Defendant knew Plaintiff was married to or had a child with Yin at the time that they met or thereafter.

Defendant's Objection Number 15 concerns hearsay statements made by Yin to Plaintiff. Hearsay statements 1, 2, and 3 concern certain assurances Yin made to Plaintiff with respect to the Property. The Court does not find that any exceptions apply to these statements including Evidence Code section 1261, subdivision (a), which provides that "[e]vidence of a statement is not made inadmissible by the hearsay rule when offered in an action upon a claim or demand against the estate of the declarant if the statement was made upon the personal knowledge of the declarant at a time when the matter had been recently perceived by him and while his recollection was clear." Although Plaintiff indicates that these statements were made before Yin was diagnosed with cancer, she does not specify when they were made for the Court to determine whether the statements were recently perceived by Yin.

On the other hand, Plaintiff makes clear that hearsay statements 4 and 5 were made in 2019, the same year Yin was diagnosed with cancer and passed away. However, these statements suffer from two deficiencies. First, the Court cannot ascertain whether his recollection was clear since Yin had been diagnosed with cancer and was undergoing treatment at the time statements 4 and 5 were made. Second, hearsay statements 4 and 5 concern Yin's alleged conversations with Defendant regarding the Property over the phone but involve an added layer of hearsay based on Plaintiff's rendition of those conversations in her declaration. Even if Yin's recollection was clear at the time he spoke with Defendant in 2019, Plaintiff's account of those conversations is untrustworthy. Plaintiff claims she was by Yin's side at the time these conversations took place with Defendant, however, it is unclear whether Plaintiff in fact heard both sides of the conversation over the phone to be able to attest to the specific statements made by Defendant. Plaintiff's declaration also does not support that she was a participant in those conversations. Therefore, Plaintiff's testimony lacks personal knowledge and is otherwise hearsay without exception. For these reasons, Defendant's Objection Number 15 is SUSTAINED.

Defendant's Objection Numbers 16, 17, 19, 22, 25, 26, 31, and 32 all concern WeChat conversations Plaintiff engaged in with Defendant and the realtor in regard to Yin's death and the sale of the Property. Plaintiff does not attach any of these WeChat conversations as evidence to support the statements made in her declaration. Accordingly, any statements referring to the WeChat conversation lack foundation and authentication and are hearsay. (Evidence Code §§ 702, subd. (a), 1200, and 1400.) To the extent any hearsay exceptions may apply, the WeChat conversations are not before the Court to evaluate their admissibility. Therefore, Defendant's Objection Numbers 16, 17, 19, 22, 25, 26, 31, and 32 are SUSTAINED.

Defendant's Objection Number 20 concerns Exhibit 5 attached to Plaintiff's declaration concerning a Picture of Yin's death certificate that Plaintiff alleges she sent to Defendant. The photograph of this death certificate lacks foundation, is not authenticated, and is not translated pursuant to Evidence Code section 753, subdivisions (a) through (c). Therefore, Defendant's Objection Number 20 is SUSTAINED.

Defendant's Objection Number 28 concerns paragraph 61 of Plaintiff's declaration which provides: "According to Form in Chinese (Exhibit 8) and Form in English (Exhibit 9),

‘never married’ in Chinese should not be equivalent to or be translated into ‘single’ in English.” (Declaration of Yi Wei [“Wei Decl.”] at ¶ 61.) Defendant objects on several grounds including lack of authentication, hearsay, speculation, and relevance. While each of these objections are equally applicable, the Court finds that the same rationale with respect to Plaintiff’s Objection Number 3 applies here. To clarify, “single” can mean never married or married before but not presently married. Either way and as stated above, both translations equally suggest Yin was listed as “not married” on his death certificate, contrary to Plaintiff’s assertion that they were married. At issue is whether Defendant knew Yin was married to Plaintiff with a daughter at the time she filed the 850 Petition. The death certificate whether translated as “single” or “never married” would not have indicated to Defendant that Yin was married to Plaintiff, and is therefore, not relevant to the Court’s determination. Accordingly, Defendant’s Objection Number 28 is SUSTAINED.

Applicable law.

Code of Civil Procedure section 425.16 (“section 425.16”) provides a summary procedure by which defendants may dispose of “strategic lawsuits against public participation” or “SLAPP” lawsuits, i.e., lawsuits brought “primarily to chill the valid exercise of constitutional rights of freedom of speech and petition for redress of grievances.” (See Code Civ. Proc., § 425.16, subd. (a).) Specifically, section 425.16 provides for a “special motion to strike” when a plaintiff’s claims arise from certain acts constituting the exercise of the above-mentioned constitutional rights, “unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim.” (Code Civ. Proc., § 425.16, subds. (a) & (b)(1).)

“Consistent with the statutory scheme, ruling on an anti-SLAPP motion involves a two-step procedure. First, the moving defendant must identify ‘all allegations of protected activity’ and show that the challenged claim arises from that activity. [Citations.] Second, if the defendant makes such a showing, the ‘burden shifts to the plaintiff to demonstrate that each challenged claim based on protected activity is legally sufficient and factually substantiated.’ [Citation.] Without resolving evidentiary conflicts, the court determines ‘whether the plaintiff’s showing, if accepted by the trier of fact, would be sufficient to sustain a favorable judgment.’ [Citation.]” (*Bel Air Internet, LLC v. Morales* (2018) 20 Cal.App.5th 924, 934.)

Courts are to broadly construe the anti-SLAPP statute to further the legislative intent of “encouraging continued participation in matters of public significance by preventing the chilling of such participation through abuse of the judicial process.” (See *Kimbler v. Northern Inyo County Local Hospital Dist.* (2006) 39 Cal.4th 192, 199 [internal citations omitted].)

Defendant has satisfied the first prong.

“A defendant meets his or her burden on the first step of the anti-SLAPP analysis by demonstrating the acts underlying the plaintiff’s cause of action fall within one of the four categories spelled out in section 425.16, subdivision (e).” (*Collier v. Harris* (2015) 240 Cal.App.4th 41, 50-51 (*Collier*)). That section provides that an “act in furtherance of a person’s right of petition or free speech under the United States or California Constitution in connection with a public issue includes: (1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement made in connection with an issue under consideration or

review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.” (§ 425.16, subd. (e).) “These categories define the scope of the anti-SLAPP statute by listing acts which constitute an ‘act in furtherance of a person’s right of petition or free speech under the United States or California Constitution in connection with a public issue.’ ” (*Collier, supra*, at p. 51, citing § 425.16, subd. (e).)

“A claim arises from protected activity when that activity underlies or forms the basis for the claim. [Citations.] Critically, ‘the defendant’s act underlying the plaintiff’s cause of action must itself have been an act in furtherance of the right of petition or free speech.’ [Citations.] ‘[T]he mere fact that an action was filed after protected activity took place does not mean the action arose from that activity for the purposes of the anti-SLAPP statute.’ [Citations.] Instead, the focus is on determining what ‘the defendant’s activity [is] that gives rise to his or her asserted liability—and whether that activity constitutes protected speech or petitioning.’ [Citation.]” (*Park v. Board of Trustees of California State University* (2017) 2 Cal.5th 1057, 1062-1063 (*Park*).)

“[A] claim may be struck only if the speech or petitioning activity itself is the wrong complained of, and not just evidence of liability or a step leading to some different act for which liability is asserted.” (*Park, supra*, 2 Cal.5th at p. 1060.) To determine whether the speech constitutes the wrong itself or is merely evidence of a wrong, “in ruling on an anti-SLAPP motion, courts should consider the elements of the challenged claim and what actions by defendant supply those elements and consequently form the basis for liability.” (*Id.* at p. 1063.)

“In deciding whether the ‘arising from’ requirement is met, a court considers ‘the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based.’ ” (*Peregrine Funding, Inc. v. Sheppard Mullin Richter & Hampton LLP* (2005) 133 Cal.App.4th 658, 670.) “[I]f the defendant does not demonstrate this initial prong, the court should deny the anti-SLAPP motion and need not address the second step.” (*Baharian-Mehr v. Smith* (2010) 189 Cal.App.4th 265, 271.)

Defendant’s filing of the 850 Petition is protected activity without exception.

Filing a petition in court is a protected activity. (*Sheley v. Harrop* (2017) 9 Cal.App.5th 1147, 1165-1166 [“The filing of lawsuits is an aspect of the First Amendment right of petition, and thus is a protected activity under the anti-SLAPP statute.”].) Defendant argues that each cause of action in the Complaint arises out of the 850 Petition filed by Defendant in the underlying action. (Anti-SLAPP Motion at p. 11:6-7.) The Complaint specifically alleges with respect to each claim that Defendant committed perjury and fraud during the course of the probate matter by filing the 850 Petition. (Complaint at ¶¶ 93, 100, 103, 114, 117, 120, 125-130, 138.) Plaintiff argues the 850 Petition does not constitute protected activity because Defendant concedes perjury and acting illegally is not protected under the anti-SLAPP statute. (Opposition at pp. 4:27-5:3.)

In support of her opposition, Plaintiff relies on *Flatley v. Mauro* (2006) 39 Cal.4th 299 (*Flatley*), a case where plaintiff, an entertainer, sued defendant attorney for civil extortion, intentional infliction of emotional distress, and wrongful interference with economic advantage based on a demand letter the defendant attorney sent to plaintiff entertainer on behalf of a client who claimed that the plaintiff entertainer had raped her and on subsequent telephone calls the defendant attorney made to the entertainer's attorneys, demanding a seven-figure payment to settle the client's claims against the entertainer. (*Flatley, supra*, 39 Cal.4th at p. 305.) The California Supreme Court affirmed the denial of defendant attorney's special motion to strike, concluding defendant attorney's communications constituted criminal extortion as a matter of law and, as such, were unprotected by constitutional guarantees of free speech or petition. (*Ibid.*)

The Court explained that Code of Civil Procedure section 425.16, "by its express terms, does not apply to any activity that can conceivably be characterized as being 'in furtherance' of a defendant's protected speech or petition rights if, as a matter of law, that activity was illegal and by reason of the illegality not constitutionally protected. [Citation.]" (*Flatley, supra*, 39 Cal.4th at p. 316.) "In such a narrow circumstance, where either the defendant concedes the illegality of its conduct or the illegality is conclusively shown by the evidence, the motion must be denied." (*Ibid.*) "The rationale is that the defendant cannot make a threshold showing that the illegal conduct falls within the purview of the statute and promotes section 425.16's purpose to 'prevent and deter 'lawsuits [referred to as SLAPP's] brought primarily to chill the valid exercise of the constitutional rights of freedom of speech and petition for the redress of grievances.' [Citations.]" (*Ibid.*) "If, however, a factual dispute exists about the legitimacy of the defendant's conduct, it cannot be resolved within the first step but must be raised by the plaintiff in connection with the plaintiff's burden to show a probability of prevailing on the merits." (*Ibid.*)

The *Flatley* court found that the attorney had committed criminal extortion as a matter of law. The court explained that the attorney repeatedly threatened to publicly accuse the entertainer of rape and to report and publicly accuse him of other unspecified violations of various laws unless he "settled" by paying a sum of at least \$ 1 million. The Court found that it clear that the attorney never intended to engage in settlement negotiations as he never discussed the particulars of his client's case and instead focused on his threats to "go public" if the plaintiff failed to pay up within the very narrow window of time the attorney left open for him to do so. (*Flatley, supra*, 39 Cal.4th at pp. 329-333.)

Similarly, in *Lefebvre v. Lefebvre* (2011) 199 Cal.App.4th 696, 705 (*Lefebvre*), also relied on by Plaintiff, the appellate court concluded that defendant's actions in filing a false police report against the plaintiff did not involve an exercise of the right of petition or free speech. This is because the defendant did not deny she had "submitted an illegal, false criminal report" against the plaintiff. (*Ibid.*) Because the record conclusively established the defendant's statements to police were false, and thus illegal under Penal Code section 148.5 (it is a misdemeanor to make a false police report), the court properly denied the anti-SLAPP motion. (*Lefebvre, supra*, 109 Cal.App.4th at pp. 701, 705-706.)

But, in a case where a factual dispute concerning the illegality of the statements or conduct are at issue, the *Flatley* exception is inapplicable. (*Seltzer v. Barnes* (2010) 182 Cal.App.4th 953, 965-967 (*Seltzer*).) For example, in *Seltzer*, the plaintiff failed to conclusively establish the illegality of settlement negotiations at issue as there were several factual disputes, including the

defendant's intent, during the proceedings. (*Id.* at p. 965.) "[C]onduct that would otherwise be protected by the anti-SLAPP statute does not lose its coverage simply because it is alleged to have been unlawful." (*Hansen v. Department of Corrections & Rehabilitation* (2008) 171 Cal.App.4th 1537, 1545 (*Hansen*).) The party opposing the special motion to strike bears the burden of showing that no factual dispute exists as to the illegality of the conduct underlying the complaint. (*Seltzer, supra*, 182 Cal.App.4th at p. 965.)

After careful consideration of the pleading, affidavits, and evidence submitted by both parties, the Court concludes that the 850 Petition underlies the basis for each cause of action in Plaintiffs' Complaint. Defendant's 850 Petition filed in the Probate Division of this Court inherently concerns a written statement made before a judicial proceeding in furtherance of the right of free speech as defined in section 425.16, subdivision (e)(1).

For example, in the first cause of action for violation of Penal Code section 118, Plaintiff alleges Defendant's 850 Petition includes false statements and that she is guilty of perjury. (Complaint at ¶ 93.) Plaintiff's second cause of action seeks to set aside the Court's order granting the 850 Petition. (*Id.* at ¶ 106.) Plaintiff's third cause of action for violation of Family Code section 2602 seeks relief in the amount of property "misappropriated by the wrongdoing spouse to the exclusion of the community estate." (*Id.* at ¶ 113.) Plaintiff alleges "[b]y perjury, extrinsic fraud, and other wrongful conduct set forth herein, Defendant deliberately misappropriated the Property and excluded Yin, Yin's heirs, and successors in interest from the Property." (*Id.* at ¶ 114.) Thus, the third cause of action also arises from the 850 Petition.

Likewise, Plaintiff's fourth cause of action for breach of fiduciary duty alleges that Defendant owed Plaintiff and her daughter a distribution of the Property and that she breached that distribution through "perjury, extrinsic fraud, deliberate misappropriation of Property, and other wrongful conduct set forth herein." (Complaint at ¶ 120.) In the fifth cause of action for fraud, Plaintiff alleges that Defendant concealed the 850 Petition proceedings from Plaintiff. (*Id.* at ¶ 127.) Plaintiff also alleges that Defendant concealed the fact she committed perjury, that the Court issued an order granting the 850 Petition, and that she sold the Property. (*Id.* at ¶ 128.)

Finally, with respect to the sixth cause of action for constructive trust, Plaintiff alleges that Defendant fraudulently obtained the Property through the 850 Petition and sold it to buy new property instead. (Complaint at ¶¶ 139, 140.) Plaintiff alleges the new property is the constructive trust property traceable to the Property that was obtained a result of the allegedly fraudulent 850 Petition. (*Id.* at ¶ 140.) Accordingly, the 850 Petition forms the basis for all of Plaintiff's claims.

To the extent Plaintiff argues the *Flatley* exception should apply, as stated in the Reply papers, Defendant has not conceded the illegality of her conduct or that she committed perjury with respect to the 850 Petition. (Reply at p. 4:24-26.) Furthermore, illegality or perjury in this instance cannot be shown by the evidence. At issue is whether Defendant knew Plaintiff was married to Yin and had a daughter with him at the time she filed her 850 Petition. In her declaration in support of the anti-SLAPP motion, Defendant states, "I had no reason to believe Yin was married at the time of his death, as his household reregistration certificate obtained and filed with the Petition states at the time of death, Yin was 'single.' It was only when I was

served with the Complaint in the instant action did I learn of Plaintiff's alleged marriage and child with Defendant's ex-husband in China." (Hsu Decl. at ¶ 12.)

In response, Plaintiff states she met Defendant in 2016 and they added each other on WeChat, a text messaging platform. (Wei Decl. at ¶ 11.) Plaintiff attaches a photograph of her and Defendant in Qingdao, China together in 2016. (*Ibid.*, see Ex. 3.) Plaintiff thereafter refers to several conversations between her, Yin, and Defendant regarding the sale of the Property and Yin's death. (Wei Decl. at ¶¶ 17, 19-23, 25-34, 37-39, 42-45, 47-50.) Per Plaintiff's declaration, several of these conversations occurred over WeChat. (*Ibid.*) As stated above, Plaintiff's references to these conversations to convey what was said between the parties are hearsay without exception. Plaintiff does not attach any of the WeChat conversations as evidence to her declaration. Thus, these conversations through WeChat lack foundation and cannot be authenticated. In the absence of the original text messages, the Court also cannot evaluate whether any of the hearsay statements contained within them are subject to a valid exception. Plaintiff does not provide any argument in this regard. Even if no hearsay exception would otherwise apply, the text messages would nevertheless serve as proof of communication between the parties. As it stands, without those text messages, the Court has no proof that the parties in fact communicated about these matters.

Further, Defendant's declaration submitted in support of Reply aside, the fact that the parties met in 2016 does not conclusively establish that Defendant knew Plaintiff was married to or romantically involved with Yin or that they shared a daughter together. Additionally, Plaintiff also tries to make issue of the fact that the translation of Yin's Household De-registration Certificate submitted in support of the 850 Petition incorrectly translated his marital status as "never married" instead of "single." (Opposition at p. 7:10-28.) As stated above, the Court does not find this point relevant because both translations instead draw the inference that he was not married at the time of death. Even if Defendant should have known the translation was incorrect, these facts do not conclusively establish that Defendant would have known Yin was married at the time of his death just by examining his death certificate or the Household De-registration Certificate.

As a factual dispute exists with respect to the alleged perjury, the *Flatley* exception is inapplicable here. (See *Seltzer*, *supra*, 182 Cal.App.4th at pp. 965-967 [holding that where factual disputes regarding the illegality of statements or conduct is at issue, the *Flatley* exception does not apply].) Likewise, simply because perjury has been alleged in the Complaint, does not mean Defendant's filing of the 850 Petition is not protected by statute. (See *Hansen*, *supra*, 171 Cal.App.4th at p. 1545.) Plaintiff's evidence only highlights the existence of a factual dispute in this regard. Plaintiff has not met her burden on this prong. Accordingly, the Court finds that the first prong has been satisfied and Plaintiff's claims in this lawsuit arise from protected activity based on the filing of the 850 Petition in the probate matter. The Court, thus, proceeds to consider the second prong: whether Plaintiff has demonstrated a likelihood of success on the merits for her claims.

Defendant has satisfied the second prong.

"In determining whether a plaintiff meets its responsive burden under the second prong, 'the court shall consider the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based.' [Citations.] In doing so, ' "[t]he court does not weigh evidence or resolve conflicting factual claims. Its inquiry is limited to whether the

plaintiff has stated a legally sufficient claim and made a prima facie factual showing sufficient to sustain a favorable judgment. It accepts the plaintiff's evidence as true, and evaluates the defendant's showing only to determine if it defeats the plaintiff's claim as a matter of law.” [Citations.]” (*Area 55, LLC v. Nicholas Tomasevic, LLP* (2021) 61 Cal.App.5th 136, 151.)

“Courts have described this procedure as a ‘motion for summary judgment in “reverse.”

Rather than requiring the *defendant* to defeat the plaintiff's pleading by showing it is legally or factually meritless, the motion requires the *plaintiff* to demonstrate that he possesses a legally sufficient claim which is “substantiated,” that is, supported by competent, admissible evidence.’ [Citations.] Consistent with this summary-judgment-like procedure, the court ‘must draw all reasonable inferences from the evidence in favor of [the party opposing the anti-SLAPP motion].’ [Citation.]” (*Area 55, supra*, 61 Cal.App.5th at p. 152.)

Moreover, “ ‘evidence may be considered at the anti-SLAPP motion stage if it is *reasonably possible* the evidence set out in supporting affidavits, declarations or their equivalent will be admissible at trial’ [citation]. ‘Conversely, if the evidence relied upon *cannot* be admitted at trial, because it is categorically barred or undisputed factual circumstances show inadmissibility, the court may not consider it in the face of an objection.’ [Citation.]” (*Area 55, supra*, 61 Cal.App.5th at p. 152.)

“When evaluating an affirmative defense in connection with the second prong of the analysis of an anti-SLAPP motion, the court, following the summary-judgment-like rubric, generally should consider whether the defendant's evidence in support of an affirmative defense is sufficient, and if so, whether the plaintiff has introduced contrary evidence, which, if accepted, would negate the defense. [Citations.]” (*Bently Reserve LP v. Papaliolios* (2013) 218 Cal.App.4th 418, 434.)

Plaintiff's claims are barred by the litigation privilege.

Defendant contends that Plaintiff cannot prevail on the merits because all her claims are barred by the litigation privilege. (Anti-SLAPP Motion at p. 12:5-22.) Defendant argues each of Plaintiff's causes of action rest on the underlying 850 Petition. (*Id.* at p. 7:5-8:19.) Plaintiff argues perjury is not covered by the litigation privilege. (Opposition at p. 10:9-18.)

“The litigation privilege, codified at Civil Code section 47, subdivision (b), provides that a ‘publication or broadcast’ made as part of a ‘judicial proceeding’ is privileged. This privilege is absolute in nature, applying ‘to *all* publications, irrespective of their maliciousness.’ (*Silberg v. Anderson* (1990) 50 Cal.3d 205, 216 (*Silberg*).) ‘The usual formulation is that the privilege applies to any communication (1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that [has] some connection or logical relation to the action.’ (*Id.* at p. 212.) The privilege ‘is not limited to statements made during a trial or other proceedings, but may extend to steps taken prior thereto, or afterwards.’ (*Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1057 (*Rusheen*).)” (*Action Apartment Assn., Inc. v. City of Santa Monica* (2007) 41 Cal.4th 1232, 1241.)

The “[p]leadings and process in a case are generally viewed as privileged communications.” (*Navellier v. Sletten* (2003) 106 Cal.App.4th 763, 770.) The privilege has been applied

specifically in the context of abuse of process claims alleging the filing of false or perjurious testimony or declarations. (*Pollock v. University of Southern California* (2003) 112 Cal.App.4th 1416, 1431 [declaration “functions as written testimony,” is a “communication, not conduct,” and “is exactly the sort of communication the privilege is designed to protect”]; *Pettitt v. Levy* (1972) 28 Cal. App. 3d 484, 489 [“[p]reparing and presenting false documents is equivalent to the preparation and presentation of false testimony”]; *Carden v. Getzoff* (1987) 190 Cal. App. 3d 907, 913-915 [claim that expert witness had manufactured false evidence for former wife in dissolution action was privileged].) Thus, . . . the communicative act of filing an allegedly false declaration of service of process [falls] within the litigation privilege. (See also *Steiner v. Eikerling* (1986) 181 Cal. App. 3d 639, 643 [presentation of a forged will in a judicial proceeding constituted a “publication” under section 47]; *Pettitt v. Levy, supra*, 28 Cal. App. 3d at p. 491¹ [preparation and submission of false or forged building permit to city council and planning commission pursuant to alleged conspiracy was privileged].)

(*Rusheen, supra*, 37 Cal.4th at p. 1058.) “[W]here the gravamen of the complaint is a privileged communication (i.e., allegedly perjured declarations of service) the privilege extends to necessarily related noncommunicative acts (i.e., act of levying).” (*Id.* at p. 1062.)

While the California Supreme Court in *Flatley* decided that litigation privilege and protected activity under Code of Civil Procedure section 425.16, subdivision (e) are not necessarily coextensive, in this case the scope of protection under the anti-SLAPP statute overlaps with that of the litigation privilege. (See *Flatley, supra*, 39 Cal.4th at pp. 323-324 [noting that the relationship between the litigation and anti-SLAPP statute are not substantively the same and serve different purposes].) Although the Court was specific that perjury is not considered protected activity under the anti-SLAPP statute, it noted that “the rationale for applying the litigation privilege to some forms of illegal conduct—**like perjury**—[is that] the occasional bad result is justified by the larger goal of access to the judicial process” (*Id.* at p. 324 [emphasis added].)

Here, the litigation privilege applies because Plaintiff’s claims are based on a communication made in a judicial proceeding. The 850 Petition is a pleading made in the related probate matter and informs the basis for each of Plaintiff’s claims as stated above explaining the scope of protection under the anti-SLAPP statute. Those same references to the 850 Petition in the Complaint overlap and apply here under the litigation privilege. (Complaint at ¶¶ 93, 106, 113, 114, 120, 127, 128, 139, 140.) The California Supreme Court has made clear that “[t]he privilege has been applied specifically in the context of abuse of process claims alleging the filing of false or perjurious testimony or declarations.” (*Rusheen, supra*, 37 Cal.4th at p. 1058.)

Thus, even if Plaintiff were able to resolve the factual disputes with respect to whether Defendant committed perjury, the litigation privilege would nevertheless apply and Plaintiff cannot establish a likelihood of success on the merits for any of her claims. As Defendant has shown this affirmative defense would apply to all claims and Plaintiff has not introduced any evidence to the contrary, the Court need not consider Plaintiff’s claims individually. These findings are sufficient for the Court to conclude the second prong has been met.

¹ *Pettitt v. Levy* (1972) 28 Cal.App.3d 484

Accordingly, the Court GRANTS Defendant's Anti-SLAPP Motion with respect to Plaintiff's Complaint in its entirety.

Attorney's Fees

The "prevailing defendant" on the motion to strike "shall be entitled" to recover his or her attorney fees and costs. (Code Civ. Proc., § 425.16, subd. (c).) "[A]ny SLAPP defendant who brings a successful motion to strike is entitled to mandatory attorney fees." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131; see also *Bernardo v. Planned Parenthood Federation of America* (2004) 115 Cal.App.4th 322, 364 [rejecting due process and equal protection challenges to provision].)

There are three alternative procedures by which a successful defendant may obtain a fee award under section 425.16, subdivision (c): (1) request fees as part of the anti-SLAPP motion; (2) make a noticed motion for fees after the anti-SLAPP motion has been granted; or (3) include the fee request in the cost bill after entry of judgment. (*American Humane Association v. L.A. Times Communications* (2001) 92 Cal.App.4th 1095, 1103.)

Defendant requests attorney's fees as directed by Code of Civil Procedure section 425.16 but does not indicate a specific fee amount or include a declaration from counsel. (Anti-SLAPP Motion at p. 15:5-7.) Defendant is directed to prepare a noticed motion and attorney declaration to support an award of fees and costs or include the fee request in the cost bill after entry of judgment.

The Court will prepare the Order.

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Duy Nguyen v. Fred Meeske et al.

This action was filed on October 11, 2022 by Plaintiff Duy Nguyen (“Plaintiff”) against his former employer Rosendin Electric, Inc. (“Rosendin”) and two of his former co-employees Fred Meeske (“Mr. Messke”) and Julie Moss (“Ms. Moss”). The current motion relates to nine motions to compel filed by Plaintiff on December 22, December 27, December 28, December 29, 2023 and January 2, 2024.

For purposes of identification, they are listed and discussed as follows:

#1 Filed December 22, 2023, Plaintiff’s Motion to Compel Rosendin’s Further Responses to Production of Documents (served 8/24/2023; original response 9/28/2023). On March 22, 2024, Rosendin provided further responses and produced documents in response to the demand. No further motion was filed by Plaintiff. On April 9, 2024, at the date scheduled for this hearing, the Court referred the Parties to the Discovery Facilitator Program (DFP) and continued hearing on this and the other eight motions to July 16, 2024.

#2-4 Filed December 27, 2023, Plaintiff’s Motions to Compel Mr. Meeske to Further Respond to Plaintiff’s Form Interrogatories, Request for Admissions and Special Interrogatories (served 9/25/2023, original responses 10/30/2023). On May 23, 2024, Mr. Meeske provided further responses to these discovery requests. No further motion was filed by Plaintiff.

#5-7 Filed December 28, 2023, Plaintiff’s Motions to Compel Ms. Moss to Further Respond to Plaintiff’s Form Interrogatories, Request for Admissions and Special Interrogatories (served 9/25/2023, original responses 10/30/2023). On May 23, 2024, Ms. Moss provided further responses to these discovery requests. No further motion was filed by Plaintiff.

#8 Filed December 29, 2023, Plaintiff's Motion to Compel Rosendin's Further Responses to Special Interrogatories Set No. 1, nos. 1-13, 18, 20, 21 (served 9/25/2023, original response 10/30/2023). Rosendin did not supplement its responses, but stated that it would supplement its responses to interrogatories 1, 3, 5-6, 8, 12-13 once a protective order was entered by the Court.

#9 Filed January 2, 2024, Plaintiff's Motion to Compel Rosendin's Further Responses to Document Demands, Nos 3, 5-6, 8-13, 16-17, 20, 22, 25, 27, 29, 31-32, 34, 37-44, 46-53, 56-59 (served 9/25/2023, original response 10/30/2023). Rosendin did not supplement its responses, but stated that the matter would be referred to the DFP and that further response with production of documents not previously produced may be made after a protective order was entered by the Court.

The Court's jurisdiction to hear and decide motions to compel further discovery responses is limited to motions that are filed within the statutory time allotted for the filing of such motions (in the case of written discovery, 45 days). On September 17, 2024, Defendant brought before the Court its motion (filed August 22, 2024) to dismiss all nine of the foregoing motions. The Court vacated any further hearing on the nine motions, and re-referred the Parties to the DFP to meet and confer as to whether there were discovery issues that the Parties could agree to resolve. It appears that despite this directive, Plaintiff's counsel did not contact the DFP or participate further in that program.

The Court thereafter special set this hearing. The Court finds that the 9/17/2024 decision of the Court to vacate further hearing dates on Motions #1-7 listed above was required. Defendants had supplemented their responses to the discovery requests that were the subject of those motions. If Plaintiff had issues with the supplemental responses that were not being resolved through the DFP process, he had to file a motion or entered into a written stipulation to extend the time to file such motion and therefore the Court's jurisdiction to consider the matters. He did not do so.

With regard to Motion #8, the Court finds that the filing of the original motion in December 2023 reserved the Court's jurisdiction to decide whether further responses should be ordered to Interrogatory Nos. 1-13, 18, 20, 21. On September 17, 2024, that issue was returned to the DFP. The Court considers that as late as October 1, 2024, counsel for Rosendin was expressing that it would consider supplementing its responses to interrogatories 1, 3, 5-6, 8, 12-13 once a protective order was entered by the Court.

Similarly whether or not there needed to be further responses ordered to Document Demands, Nos 3, 5-6, 8-13, 16-17, 20, 22, 25, 27, 29, 31-32, 34, 37-44, 46-53, 56-59 was not resolved.

Accordingly, the tentative ruling of the Court is to order that 1) Defendant Rosendin submit to the Court their proposed Protective Order. As long as it is substantively consistent with the Court's Civil Complex litigation guideline Protective Order's, it will be signed by the Court; 2) Defendant Rosendin to supplement its interrogatory responses and document production with regard to those responses and documents that were withheld pending the entry of the Protective Order. The Court DENIES Plaintiff's Motions to Compel #8 and #9 in all other respects, as the Court finds from its review of the filings and declarations herein that Plaintiff has misused the discovery process through his failure to meet and confer in

good faith, his failure to cooperate with Court, opposing counsel and the Discovery Facilitator and his taking unmeritorious positions in discovery. See CCP§§2023.010, 2023.030.

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